

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
REGINALD WILSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE and JANE DOE #1-4 (the names "John Doe" and "Jane Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers, CORRECTION OFFICERS JOHN DOE #1-4 (the names "John Doe" being fictitious, as the true names are presently unknown), individually and in their official capacity as New York City Correction Officers,

Defendants.

Index No.: _____

Date Purchased: _____

SUMMONS

Plaintiff designates New York County as the place of trial.

The basis of venue is:
Place of Occurrence

Plaintiff resides at:
865 Columbus Avenue, Apt. #8H
New York, New York 10025

-----X
To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 6, 2017



Michael A. Simon, Esq.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
REGINALD WILSON
299 Broadway, 17th Floor
New York, New York 10007
212-233-6686
Our File No.: 16-5986

TO:

THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007
DETECTIVE ELIZABETH MARQUEZ (SHIELD #737), NYPD 24th Precinct, 131 West 100th Street,
New York, New York 10023

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.: _____

-----X
REGINALD WILSON,

Date

Purchased: _____

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE and JANE DOE #1-4 (the names "John Doe" and "Jane Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers, CORRECTION OFFICERS JOHN DOE #1-4 (the names "John Doe" being fictitious, as the true names are presently unknown), individually and in their official capacity as New York City Correction Officers,

Defendants.

-----X

Plaintiff **REGINALD WILSON** by his attorneys **NOVO LAW FIRM, PC** complaining of Defendants **THE CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE #1-4, and CORRECTION OFFICERS JOHN DOE #1-4** respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff **REGINALD WILSON** was, and still is, an individual with a permanent residence of 865 Columbus Avenue, Apartment #8H, County of New York, City of New York and State of New York
2. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.

3. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which act as its agent in the area of law enforcement and for which is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of a police force and the employment of police officers as said risks attaches to the public consumers of the services provided by New York City Police Department.
4. At all times relevant herein, Defendants **DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE and JANE DOE #1-4 and CORRECTION OFFICERS JOHN DOE # 1-4** were, and still are, duly appointed and acting officers, servants, employees and agents of New York City Police Department a municipal agency of Defendant **THE CITY OF NEW YORK**.
5. Defendants **DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE #1-4, and CORRECTION OFFICERS JOHN DOE #1-4** were, and still are, at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as officers, agents, servants and employees of Defendants **THE CITY OF NEW YORK**, were acting, for and on behalf of, and within the power and authority vested in them by Defendants **THE CITY OF NEW YORK** and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.
6. On July 8, 2016 and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on Plaintiff's behalf on Defendant **THE CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE #1-4, and CORRECTION OFFICERS JOHN DOE #1-4** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.

7. Upon information and belief and pursuant to General Municipal Law § 50(h), a hearing was requested to be scheduled to be held at the office of a designated agent. To date, the designated agent has failed to reschedule the 50-H hearing.
8. The cause of the action alleged herein arose in the County of New York, State of New York.

FACTS

9. On or about, April 7, 2016, at approximately 1:00 P.M., Plaintiff **REGINALD WILSON** was transferred from the care and custody of New York State Department of Corrections to New York City Police Department when he became the victim of police retaliation, false arrest, police misconduct and malicious prosecution at 151 West 100 Street, Precinct 24, County of New York, State of New York.
10. Prior to the date of occurrence, Plaintiff was in the care and custody of the New York State Department of Corrections at Franklin Correctional Facility, 62 Bare Hill Road, County of Franklin, State of New York for an unrelated charge to the subject complaint.
11. Upon information and belief, at the request of New York City Police Department, Plaintiff was transported from Franklin Correctional Facility eventually to 51 West 100 Street, Precinct 24, County of New York, State of New York wherein he was assaulted, battered and falsely arrested on April 7, 2016 by **DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE #1-4, and CORRECTION OFFICERS JOHN DOE #1-4.**
12. Upon information and belief, the instant false arrest resulted from an incident which occurred on or about August 31, 2015 at approximately 1:15 P.M., wherein Plaintiff **REGINALD WILSON** was a lawful citizen at or near the premises located at 865 Columbus Avenue, Apt # 8H in the County of New York, State of New York.
13. On August 31, 2015, Plaintiff **REGINALD WILSON** was lawfully on the above-referenced premises as a licensee of his Mother as the known tenant of the property.
14. Upon information and belief, on August 31, 2015 at approximately 1:15 P.M at the above-referenced location, Plaintiff **REGINALD WILSON** was violently assaulted, threatened and battered by his son Reginald Wilson Jr.

15. Upon information and belief, Plaintiff **REGINALD WILSON** left the above-reference location immediately after being assaulted by his son Reginald Wilson Jr.
16. Upon information and belief, and unbeknownst to Plaintiff **REGINALD WILSON**, his son Reginald Wilson Jr. made a complaint to the New York City Police Department with patently false accusations that Plaintiff **REGINALD WILSON** committed an assault against Reginald Wilson Jr.
17. Upon information and belief, Defendants failed to investigate even the most minimal amount to ascertain the proper facts and circumstances of the above-referenced occurrence. In fact, Defendants **DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE #1-4, and CORRECTION OFFICERS JOHN DOE #1-4.** failed to investigate into the matter whatsoever prior to the subject false arrest of Plaintiff **REGINALD WILSON** on April 7, 2016.
18. Upon information and belief, on or about March 29th, 2016, while in the care and custody of New York State Department of Corrections at Franklin Correctional Facility, Plaintiff **REGINALD WILSON** was informed that he was ordered to appear at 151 West 100 Street, Precinct 24, County of New York, State of New York.
19. Upon information and belief, Plaintiff **REGINALD WILSON** was transported from Franklin Correctional Facility, to Downstate Correctional Facility, to Ulster Correctional Facility to Rikers Island Correctional Center to 151 West 100 Street, Precinct 24, County of New York, State of New York.
20. Upon information and belief, it took approximately five (5) days to transport Plaintiff **REGINALD WILSON** from Franklin Correctional Facility to 51 West 100 Street, Precinct 24, County of New York, State of New York and he was handcuffed for this entire duration.
21. Upon arrival at 51 West 100 Street, Precinct 24, County of New York, State of New York, Plaintiff **REGINALD WILSON** was assaulted, battered, falsely arrested and maliciously prosecuted by **DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE #1-4, and CORRECTION OFFICERS JOHN DOE #1-4.**

22. At no time did Plaintiff **REGINALD WILSON** resist arrest or disobey the arresting officers' commands.
23. Upon information and belief, **REGINALD WILSON** was forced to spend approximately 8 (eight) hours in a dirty and infested cell at 151 West 100 Street, Precinct 24, County of New York, State of New York after which he was processed, fingerprinted and photographed.
24. Upon information and belief, Plaintiff **REGINALD WILSON** was then brought before the Judge at 100 Centre Street, New York County Criminal Court and once again processed fingerprinted and placed in a dirty and infested holding cell.
25. Upon information and belief, Plaintiff **REGINALD WILSON** was then charged with two misdemeanors in relation to the alleged incident that occurred on August 31, 2015. Plaintiff was then ordered to appear again at 100 Centre Street, New York County Criminal Court on June 23, 2016 and he was transported back to Franklin Correctional Facility which also took approximately five (5) days.
26. Upon information and belief, Plaintiff **REGINALD WILSON** was again transported from Franklin Correctional Facility to 51 West 100 Street, Precinct 24, County of New York, State of New York while handcuffed the entire five (5) day duration and all charges were dismissed on June 23, 2016.
27. Said police misconduct violated the Civil Rights of Plaintiff **REGINALD WILSON**.
28. Plaintiff **REGINALD WILSON** has suffered substantial actual damages including and not limited to, legal fees and court costs, expenses of defending the prosecution, extreme emotional distress, aggravation, humiliation, loss of enjoyment of life, loss of reputation, sleeplessness, headaches, nightmares, further fear of arrest and other incidental and consequential damages, which were reasonably foreseeable by Defendants.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983
BY DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE "JANE"
MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and
CORRECTION OFFICERS JOHN DOE #1-4

28. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

29. By their conduct and actions in arresting, searching, imprisoning, failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendants **DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE #1-4, and CORRECTION OFFICERS JOHN DOE #1-4** acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
30. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured

AS AND FOR A SECOND CAUSE OF ACTION
DERELICTION OF DUTY, DELIBERATE INDIFFERENCE
AND FAILURE TO INTERCEDE BY DEFENDANTS DETECTIVE ELIZABET
MARQUEZ (SHIELD #737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS
JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4

31. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
32. Defendants **CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4** were under a duty of safeguarding the public and ensuring the appropriate execution of Defendant's role.
33. Plaintiff duly relied on Defendants' fulfillment of their Policing duties.
34. Defendants had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence.
35. Defendants **CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4** violated Plaintiff's constitutional rights when

they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

36. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL
HARM AND/OR DISTRESS BY DEFENDANTS DETECTIVE ELIZABET MARQUEZ
(SHIELD #737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE
AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4 AND THE CITY
OF NEW YORK VIA RESPONDEAT SUPERIOR

37. A timely Notice of Claim was filed with the City of New York.
38. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
39. Under the color of state law, Defendants **CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4** intentionally caused continuous emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of continuous emotional distress emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
40. Upon information and belief, Defendants committed multiple acts against Plaintiff, which invaded his interests and inflicted injuries upon him throughout all stages of investigation, the continuous detention and the hearings, and trials, which cumulatively amounted to intentional infliction of emotional harm and/or distress.
41. The emotional harm and/or distress continue to present day.
42. The conduct transcended the bounds of human decency. The conduct amounted to more than the emotional harm that is encompassed within the other claims.
43. **THE CITY OF NEW YORK** is responsible on the theory of respondeat superior.

44. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
MALICIOUS PROSECUTION UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983 AND
NEW YORK STATE CLAIM OF MALICIOUS PROSECUTION AGAINST DEFENDANTS,
DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE "JANE"
MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE, CORRECTION
OFFICERS JOHN DOE #1-4 AND THE CITY OF NEW YORK VIA MONELL CLAIM
AND/OR REPONDEAT SUPERIOR

50. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
51. Defendants' actions with regard to the institution and maintenance of the criminal prosecution were committed wantonly and with a reckless disregard for whether a reasonable ground of suspicion existed, supported by the circumstances, which would lead a reasonably prudent person to believe that Plaintiff had committed a crime.
52. By the actions described above, Defendants **CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4** initiated a prosecution against Plaintiff **REGINALD WILSON**.
53. By the actions described above, Defendants **CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4** caused Plaintiff to be maliciously prosecuted without any probable cause, without reasonable suspicion, without any proper claims, without any right or authority to do so, illegally and with malice.
54. Defendants **CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4** arrested and issued legal process in order to obtain collateral objectives outside the legitimate ends of the legal process and intimidating

Plaintiff for their personal interest and further to prevent Plaintiff from disclosing the aforementioned evidence of their misconduct.

55. Defendants acted with intent to do harm to Plaintiff without excuse or justification. It was obvious in this situation that based on the totality of circumstances, there was no probable cause to continue and even if there was probable cause to support the arrest, the evidence surfaced once Plaintiff identified himself and/or went further to prove his identity before being transported away from the scene.

56. By the actions described above, Defendants **CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4** lacked probable cause to believe the proceeding could succeed.

57. The charges were ultimately terminated in favor of Plaintiff **REGINALD WILSON**.

AS AND FOR A FIFTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

58. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

59. There was no probable cause for the arrest. The Defendants did not investigate even the most minimal amount to ascertain the facts of the situation upon learning of Reginald Wilson Jr.'s complaint.

60. By the actions described above, Defendants caused Plaintiff to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.

61. A timely Notice of Claim was filed on behalf of Plaintiff.

62. **THE CITY OF NEW YORK** is responsible based on the theory of respondeat superior.

63. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK
VIA BATTERY AND ASSAULT

64. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

65. A timely Notice of Claim was filed by Plaintiff.

66. **THE CITY OF NEW YORK** is responsible based on the theory of respondeat superior.

67. Defendant **THE CITY OF NEW YORK** is vicariously liable to Plaintiff for the individual Defendants, **DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4**, common tort of battery and assault via the principle of respondeat superior and New York Civil Procedure.

68. Defendants committed a battery on Plaintiff as described above, while in custody; including but not limited to placing Plaintiff in handcuffs.

69. The above-mentioned abuse was harmful, un-consented, and unjustified and in so doing, Defendant, violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.

70. That on the aforementioned time and place, Defendants committed the tort of assault against Plaintiff by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.

71. That by reason of the battery and assault, Plaintiff was harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiff was otherwise harmed as a result of the Defendant's actions

72. That by reason of the aforesaid committed by Defendants, Plaintiff suffered and continues to suffer physical and emotional injury and that he was otherwise damaged.
73. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING

74. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
75. Defendant **THE CITY OF NEW YORK** negligently hired, screened, retained, supervised and trained Defendants **DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE “JANE” MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4** and its employees.
76. A timely Notice of Claim was filed by Plaintiff.
77. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

78. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
79. Defendants **CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD #737), DETECTIVE “JANE” MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE and CORRECTION OFFICERS JOHN DOE #1-4** negligently caused emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York

80. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A NINTH CAUSE OF ACTION
VIOLATION OF SUBSTANTIVE DUE PROCESS

81. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

82. Defendants individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff **REGINALD WILSON** that shock the conscience including but not limited to, deliberate indifference to his medical needs, in violation of the Fourteenth Amendment to the United States Constitution.

83. Defendants individually and collectively are liable for abuses against Plaintiff **REGINALD WILSON** that shock the conscience in violation of New York law, rules and regulations.

84. As a result of the foregoing, Plaintiff **REGINALD WILSON** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

85. That by reason of the foregoing, Plaintiff **REGINALD WILSON** has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff **REGINALD WILSON** demands judgment against Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
April 6, 2017

Yours, etc.



Michael A. Simon, Esq.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
REGINALD WILSON
299 Broadway, 17th Floor
New York, New York 10007
212-233-6686
Our File No. 16-5986

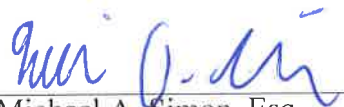
ATTORNEY'S VERIFICATION

MICHAEL A. SIMON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **NOVO LAW FIRM, PC**, attorneys of record for Plaintiff **REGINALD WILSON**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
April 6, 2017


Michael A. Simon, Esq.

Index No.: _____/2017
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

REGINALD WILSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE ELIZABET MARQUEZ (SHIELD # 737), DETECTIVE "JANE" MENDEZ, POLICE OFFICERS JOHN DOE AND JANE DOE #1-4 (the names "John Doe" and "Jane Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers, CORRECTION OFFICERS JOHN DOE #1-4 (the names "John Doe" being fictitious, as the true names are presently unknown), individually and in their official capacity as New York City Correction Officers,

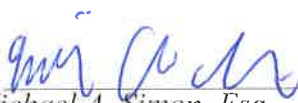
Defendants.

SUMMONS AND VERIFIED COMPLAINT

NOVO LAW FIRM, P.C.
Attorneys for Plaintiff
REGINALD WILSON
299 Broadway, 17th Floor
New York, New York 10007
(212) 233-6686
Fax (212) 233-6687

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 6, 2017



Michael A. Simon, Esq.

TO:

THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007